



Exh. D-37

**IN THE COURT OF THE SENIOR CIVIL JUDGE, "A" COURT,
PANAJI.**

**(Before Pooja C. Kavlekar, Ad-hoc Senior Civil Judge, "A" Court,
Panaji.)**

Special Civil Suit no.52/2013/A

Comunidade of Bambolim,
A body constituted and functioning under
The Code of Comunidades 1961,
Represented therein by their duly elected
Attorney, having their office at
Bambolim Church road,
P.O. GMC Complex,
Bambolim, Ilhas Goa. - 403202

... Plaintiff

V e r s u s

1. Mr. FPascoal Trindade,
Major in age, businessman,
r/o Palbrika Mansion,
Near Our Lady of Rosary High School
Dona Paula, Tiswadi, Goa.
2. Mrs. Albertina Trindade,
Wife of Pascoal Trindade,
Housewife,
r/o Palbrika Mansion,
Near Our Lady of Rosary High School
Dona Paula, Tiswadi, Goa.

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3. Mrs. Dionisia Dias e Mergulhao,
w/o late Maximo Mergulao,
housewife, Model Residency,
first floor, St Inez, Panaij,
Tiswadi, Goa.
 4. M/s Raghurai Tamba,
A registered partnership firm,
Through its partner
Shri Raghurai Tamba,
Major in age, having its office at
"Parimal" Altinho, Panaji-Goa.
 5. Mr. Raghurai Tamba,
Major in age, businessman,
r/o "Parimal" Altinho,
Panaji, Goa.
 6. Mr. Pundalik Cuncolkar,
Son of late Parshuram Cuncolkar,
Major married, service and his wife,
 7. Mrs. Sumati Pundalik Cuncolkar,
Major, service,
Both r/o H.No. not known,
Palem, Siridao, Tiswadi, Goa.
 8. Mrs. Ganga alias Shobha Vasudev Narvekar,
w/o late Vasudev Narvekar,
major, daughter of late Parshuram Cuncolkar,
major, housewife.
 9. Ms. Mamtha Vadusev Narvekar,
Daughter of late Vasudev Narvekar,
Major, unmarried, service,
Both r/o H.No. not known,
Goa Velha, Tiswadi - Goa.
 10. Mrs. Kensar Manuel Pereira alias Kunkolikar,
Wife of Manuel Pereira,
Daughter of late Parshuram Cuncolkar,
Major, married, housewife,
 11. Mr. Manuel Pereira,
s/o late Joaquim Pereira,
major in age, married, service,
both r/o H.No. not known,
Cacra, St. Cruz, Ilhas - Goa.
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12. Mrs. Rukmini Bhikaro Gauns Gomes,
w/o late Bhikaro Gauns alias Gomes,
major, r/o H.No. not known,
Modlowado, Siridao,
Palem, Tiswadi, Goa.
 13. Mrs. Geeta Prakash Narvekar,
w/o Prakash Narvekar,
d/o late Bhikaro Gauns alias Gomes,
major,
 14. Mr. Prakash Narvekar,
Major in age, married,
Government servant, Indian National
Both r/o H.No. not known,
Taleigao, Tiswadi-Goa.
 15. Mrs. Chandrika Bhikaro Gauns
Alias Gomes alias Lotlikar,
d/o late Bhikaro Gauns alias Gomes,
major, r/o H.No. not known,
Modlowado, Siridao,
Palem, Tiswadi, Goa.
 16. Mr. Madhu Cuncolkar alias Canconkar,
s/o Laximan Cuncolkar,
major, service.
 17. Mrs. Succorina Madhu Cuncolkar
Alias Canconkar, alias Manisha
Madhu Cuncolkar alias Canconkar,
w/o Madhu cuncolkar alias Canconkar,
major, housewife, both r/o H.No.
not known, Modlowado, Siridao,
Palem, Tiswadi, Goa.
 18. Mr. Rama Gomes alias Lotlikar,
s/o Sebastiao Gomes,
major, Service.
 19. Smt. Sita Rama Gomes alias Lotlikar,
Housewife, both r/o H.No. not known,
Palem, Siridao, Tiswadi, Goa.

... Respondents

Learned Adv. Shri P.A. Kamat for the Plaintiff.

Learned Shri R. Rao for the defendants.

O R D E R

**(Delivered on this 30th day of the month of July, of the year
2016.)**

This order shall dispose of the application for rejection of
plaint filed by the defendants.

2. The case of the defendants is that the plaintiff has prayed for a declaration of ownership in the present suit. The said claim is barred by limitation as survey record were promulgated in the year 1978. It is further submitted that in terms of paragraph 25 of the plaint the husband of defendant no.4 namely, Maximo Mergulhao on 27/6/1980, filed an intervention application in the proceedings viz, case no. LS/CS/ENQ/11/1/80 pertaining to properties surveyed under Survey nos. 93/2, 93/3 and 93/4 of village Bambolim, Taluka Tiswadi, Goa, before the Court of the Inspector of Survey and Land Records. If the aforesaid averment is to be believed, then the same constituted as a cause of action for the plaintiff for the purpose of agitating its alleged right to title in respect of the suit properties surveyed under survey nos. 93/ 2, 93/3 and 93/4 of village Bambolim, Taluka Tiswadi, Goa. The cause of action accrued unto the plaintiff on 27/6/1980. Paragraph 25 of the suit plaint itself reveals and demonstrates that the said Maximo Mergulhao in terms of his application for intervention dated 27/6/1980 had staked a claim in respect of the properties surveyed under survey nos. 93/2, 93/3 and 93/4 of village Bambolim

and the plaintiff having been a party to the said proceedings viz. case no.LS/CS/ENQ/11/1/80 before the Court of the Inspector of Survey and Land Records, had full and complete knowledge of the same. The plaintiff ought to have agitated their right in respect of the suit properties and entitlement to the reliefs as prayed for in the present suit proceedings within the statutory period prescribed in terms of the law of limitation commencing from 27/6/1980. It is therefore, prayed that the plaint be rejected as the relief is barred by limitation.

5. The plaintiffs have filed their reply to the said application. It is their case that they have denied that the survey records of village Bambolim were promulgated in the year 1978. It is their case that the suit is filed on the basis of the title of the plaintiff and the fraud committed by the defendants which is clear from the order of the Administrator of Comunidades. The decree in Spl. Civil Suit no.220/1994 itself has to become final as the application for recall of the said decree is pending. The defendants have not produced any title documents and hence, the provision of limitation is not applicable. The Hon'ble High Court has given liberty to the plaintiff to approach the Civil Court. The question of limitation is a mixed question of law and facts and, therefore, it is prayed that the application be dismissed.

6. Ld. Adv. Shri P.A. Kamat argued for the Plaintiff. Ld. Adv. Shri R. Rao argued for the defendants. I have heard arguments for



and against and the points that arise for my determination and my findings and reasons thereof are as follows:

Points for Determination

1. Whether the plaint is to be
Rejected being barred by law?

FINDINGS

In the
negative

REASONS

7. Order 7 Rule 11 reads as under:

"11. Rejection of plaint. – The plaint shall be rejected in the following cases:-

- (a) Where it does to disclose a cause of action;
- (b) Where the relief claimed is undervalued, and the plaintiff, on being required by the Court to correct the valuation within a time to be fixed by the Court, fails to do so;
- (c) Where the relief claimed is properly valued but the plaint is written upon paper insufficiently stamped, and the plaintiff, on being required by the Court to supply the requisite stamp-paper within a time to be fixed by the Court, fails to do so;
- (d) Where the suit appears from the statement in the plaint to be barred by any law;
- (e) Where it is not filed in duplicate;

- (f) Where the plaintiff fails to comply with the provisions of rule 9:

8. The clause that is invoked in the present case is Order 7 Rule 11(d). The bar of law contemplated by O.7 Rule 11 also includes the Law of Limitation. If the relief appears to be barred by limitation, then the plaint can be rejected under Order 7 Rule 11 of C.P.C.

9. Ld. Counsel for the defendants has canvassed his arguments on the issue of limitation on three points. Firstly, that the suit is barred because as on the date of promulgation of survey records in the year 1985, the plaintiff were aware that their names did not appear in the survey records and the name of their predecessor in title i.e. defendant Maximo Mergulhao appeared. Secondly, it is further barred by limitation in view of the averments at para 25 and 29 of the plaint which makes reference to the Land Acquisition award which was within the knowledge of the plaintiffs. Thirdly, it is barred by limitation on account of the compromise decree which is referred to at para 34 and 35 of the plaint whereby the plaintiffs admitted that they do not have any right to the suit property. Hence, in the worst possible scenario if the year 1994 (i.e. the year of the suit) or the year 1998 (the year when the consent terms were filed) is construed, the suit based on title to be filed within a period of 12 years also becomes barred, as the present suit is filed in the year 2013.





10. Per contra, it is argued by the Ld. Counsel for the defendant that the cause of action to file the present suit is stated to be 29/3/2012 when the fraud committed by the defendants was discovered. All averments in the plaint are made to throw light on the fraud committed till the year 1998. It is stated by the plaintiffs that the suit which was filed in the year 1994 bearing no.222/1994 was decreed under the compromise of the parties by a compromise decree. However, it is the case of the present plaintiffs that the compromise decree was obtained by fraud and this fact was confirmed in any inquiry conducted by the Administrator of Comunidades, the reference of which is made in paras 49 and 50 of the plaint. The Hon'ble High Court in Writ Petition no.102/2009 has categorically observed that the Administrator of Comunidades has come to a conclusion that there is a fraud played to grab the plaintiff's property and the comunidade land and, therefore, the comunidade should initiate proceedings. This order was passed on 3/3/2009. The plaintiff submits that after the passing of this order, the plaintiff filed Misc. Application no.6/2010 to revoke the compromise decree passed in SCS.222/1994. This petition is still pending. The cause of action to file the present suit has been the trespass alleged to have been committed on 29/3/2012. In the abovesaid Writ Petition, the Hon'ble High Court observed that the party should approach the Civil Court as the matter involves larger investigation. Those observations were made in Writ Petition no.102/2009 decided by the Hon'ble High Court on 29/3/2012.



11. As against this background, the prayers in the present suit will have to be examined. The present suit has been filed seeking the following reliefs:

- a. To pass a Judgment and Decree declaring that the suit property admeasuring 97,590 sq. mts. is part of the property namely under survey no.93/2 of village Bambolim is part of the property of Lote no.43 'B' called "OROS" ad lote o.47 "Saveli Gali" and the property under survey no.93/3 and 93/4 of village Bambolim is part of the property of the original property of the plaintiff under Lote No.49 called "Saveli Gali" and other property of the plaintiff in village Bambolim, Tiswadi Taluka of State of Goa and the plaintiff is owner of the said property.
- b. To pass a Judgment and Decree declaring that the three sale deed dated 25/4/2006 registered under no.1238, 1239 and 1240 Book I Volume no.1634 dated 3/5/2006 in the office of the Sub Registrar of Ilhas at Panaji, Tiswadi - Goa executed between the defendant no.1, 3 and 4 in respect of the suit property under survey no.93/2, 93/3 and 93/4 of village Bambolim are illegal, null and void ab initio and the same may be ordered to be cancelled.





c. To pass a Judgment and Decree declaring that the inclusion of the name of the defendant no.1 in the Form I & XIV of the property under survey no.93/2, 93/3 and 03/4 of village Bambolim is illegal and the name of the defendant no.1 may be ordered to be deleted and the plaintiff's name may be ordered to be included in the survey records as owners/occupants of the suit property and the defendant no.1 to 5 have no right in the suit property.

d. To pass a Judgment and Decree declaring that decree in the compromise decree dated 25/1/2007 in Regular Civil Suit No.6/2007/A before Civil Judge, Senior Division at Panaji is without jurisdiction, illegal and void ab initio and is not binding on the plaintiff.

e. To pass a Judgment and Decree directing the defendants no.1 and 2 to hand over the vacant possession of the suit property under survey no.93/2, 93/3 and 93/4 of village Bambolim admeasuring 97,500 sq. mts. to the plaintiff.

f. To pass a Judgment and Decree declaring that the certificate dated 18/3/1904 allegedly issued by Clerk of Comunidade and relied upon by defendant no.1 to 4 is not a title ownership document of the suit property Saveli Gali and Oros and does not confer any right of ownership in favour of

the defendants 1 to 4 or any person claiming through them including the predecessors of defendant no.3 late Alexander Rodrigues, Maria Concesao Rodrigues.

- g. The certificate dated 18/3/1904 allegedly issued by Clerk of Comunidade and relied upon by defendant no.1 to 5 is not a grant of the property Oros and Saveli Galli and does not confer any right of ownership in favour of the defendants 1 to 4 or their predecessors in the suit property.
- h. To pass a Judgment and Decree declaring that the property under survey no. 93/2, 93/3 and 93/4 of village Bambolim is part of the plaintiff's property called Saveli Gali and Oros described in the plaint and the same was never granted or sold to late Alexander Rodrigues, Maria Concesao Rodrigues or any other person.
- i. To pass a Judgment and Decree of permanent injunction restraining the defendants no.1 and 2, their agents, servants or any other person claiming through them from starting any development and construction activities in the suit property, changing the nature of suit property and alienating, selling, transferring, the suit property under survey no. 93/2, 93/3 and 93/4 of village Bambolim in any manner.

j. Pending the hearing and final disposal of the suit to pass a Judgment and Decree of permanent injunction restraining the defednatns no.1 and 2, their agents, servants, or any other person from starting any development and construction activities or changing the nature of the suit property and alienating, transferring the suit property under survey no. 93/2, 93/3 and 93/4 of village Bambolim in any manner.

k. For add interim relief in terms of prayer (j).

12. The bar of law that is canvassed in the instant case is the Law of Limitation. It is a settled principle of law that if the question of limitation involves mixed issues of law and fact, the suit cannot be disposed on the preliminary issue of limitation.

13. Here, I shall usefully refer to the case of **Pedro do Rosario Fernandes @ Pedro Antonio Miguel Fernandes Vs. Wilfredo Xavier Jose Monrteiro, 2015(2) Goa L.R., 619**, wherein it has been held that:

"I have carefully considered the submissions of the learned counsel. I have also gone through the records. Shri J.E. Coelho Pereira, learned senior counsel appearing for the appellant, is justified to contend that the averments



in the plaint that the appellant obtained the certified copy of the survey records only in August, 1996 have not been disputed by the respondents in the written statement. Be that as it may, the suit filed by the appellant is for declaration of title. Under the provisions of the Limitation Act, specially Section 27 of the Limitation Act of 1963, the right to immoveable properties stands prescribed as per the period provided in the Schedule of the said Act. Article 65 and 66 of the Limitation Act, 1963, provides that title to the property is lost only by adverse possession for the specified period. in the present case, the finding of the learned Judge that the suit for declaration of title is barred by limitation, cannot be accepted. The cause of action to file the suit for declaration of title is continuous and, as such, a suit can be filed as long as the title to the property subsists. In the present case, unless and until the respondents establish that they have become owners by adverse possession, the findings of the learned Judge that the suit is barred by limitation is unsustainable and deserves to be quashed and set aside."

14. In this case the judgment **Daya Singh and ors. 2010(2) SCC 194** was quoted wherein it was held that:

"In this view of the matter, we do to find any ground to agree with the findings of the high Court that the suit was barred by time because of its filing after 19 years of entering into the compromise. The question of filing the suit before the right accrued to them by compromise could not arise until and unless infringement of that right was noticed by one of the parties. The High Court in the impugned Judgment, in our view, had fallen in grave error in holding that the suit was barred by time and had ignored to appreciate that the rights of the appellants to have the revenue record accrued first arose in 1990 when the appellants came to know about the wrong entry and the respondents failed to join the appellants in getting it corrected. In our view, the High Court was not justified in holding that mere existence of a wrong entry in the revenue records dos not, in law gie rise to a cause of action within the meaning of Article 58 of the Act. No other point was urged before us by the learned counsel for the parties."

15. Therefore, merely because the survey records were to the knowledge of the plaintiffs, the court cannot at the threshold reject the plaint on the ground of limitation.

[Signature]



16. Insofar as the consent terms are concerned, the plaintiff has pleaded that the consent decree is obtained by fraud. It is a settled principle of law that fraud vitiates everything including the period of time laid down in the Law of Limitation.

17. It was held in the case of **Sazyad Mainuddin & anr. Vs. Sayed Quadri AIR 1971 SC 2184**. In that case, partition of the properties was done with the consent of the parties, but later some fraud was discovered. Hence, a suit was filed for declaration was not barred by limitation.

18. In the light of the above, the issue of fraud or the question whether knowledge of survey records operated as a bar, is a question involving mixed questions of law and facts requiring the Court to examine the same in a full trial.

19. Ld. Counsel for the defendant has relied on the judgment in the case of **N. V. Srinivasa Murthy Vs. Maryamma, (2005)5 SCC 548**, wherein it has been held that:

"Necessity of claiming reliefs on which such title dependent - Title of appellant-plaintiffs resting on execution of agreement for reconveyance of suit property by respondent-defendants to them - Appellants neither claiming declaration as to nature of registered



sale deed executed by them in favour of respondents (to show that it was merely security for a loan) nor claiming specific performance of alleged agreement for reconveyance of suit property - Consequence - Held, said declaration of absolute title could not have been claimed by appellants without claiming the above reliefs on which their title was dependent - Civil Procedure Code, 1908 - Or.7 Rr.7 & 8."

20. In the said case there is a clear finding given that the subsequent suit was barred by Or.2 Rule 2 of C .P.C. Whereas, in the instant case it is a part of record that the consent decree is a part of subject matter of another Civil Misc. Application filed for its recall.

21. This court cannot be oblivious of the fact that the plaintiff has averred at para 53 and 54 that the Dy. Collector has raised doubt over the manner in which the consent terms were entered in. The Hon'ble High Court has given liberty to the parties to agitate to their claim before the Civil Court. Three years have not expired since the time. Therefore, the plaintiff cannot be rejected under Order 7 Rule C.P.C. The question of limitation is kept open.

14. In view of the above, I pass the following:

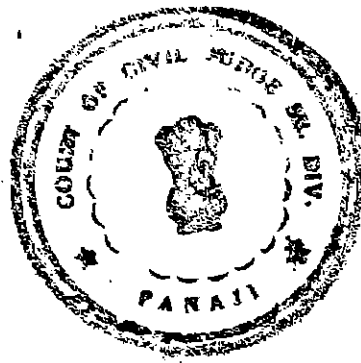


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SUPERINTENDENT

ORDER

The application is dismissed.

Pronounced in open court.



Pooja C. Kavlekar
(Pooja C. Kavlekar)
Ad-hoc Senior Civil Judge, 'A'
Court, Panaji Goa

np*

msc *g. Arjun*
a
cde